

Chapter 14

SOLID WASTE*

- Art. I. In General, §§ 14-1–14-25
Art. II. Transfer Station, §§ 14-26–14-70
Art. III. Hazardous Waste, §§ 14-71–14-80

ARTICLE I. IN GENERAL

Secs. 14-1–14-25. Reserved.

ARTICLE II. TRANSFER STATION

Sec. 14-26. Findings.

The city council has determined that the control and regulation of the use of the city transfer station is necessary for the protection of the public health and that it is necessary to limit the access to the transfer station to residents of the city, or to the holders of a public utilities commission certificate authorizing the hauling of refuse within the limits of the city, to the transfer station.

(Ord. No. 156, § 1, 7-14-76)

*Cross references—Administration, Ch. 2; board of health, § 2-71 et seq.; department of health and welfare, § 2-216 et seq.; housing, Ch. 7; garbage and rubbish disposal requirements under the housing code, § 7-43; abandonment of refrigerators and certain other appliances restricted, § 9-3; mobile homes, recreational vehicles and mobile home and recreational vehicle parks, Ch. 10; littering, rubbish, garbage, sewage and noxious material prohibited in parks and recreation areas, § 12-71; subdivisions, Ch. 17; cover required over vehicle bed hauling refuse, etc., § 19-4; utilities, Ch. 20.

Sec. 14-27. Designation of administrative personnel.

The city manager shall designate such persons as he shall determine to be responsible for the transfer station.
(Ord. No. 156, § 11, 7-14-76)

Sec. 14-28. Rules, regulations.

The city manager shall issue regulations specifying the terms, conditions and manner of the operation of the transfer station and he shall from time to time amend such regulations in such manner as he in his opinion shall determine to be necessary for the safe operation of such area. A copy of such regulations shall be posted at the transfer station.
(Ord. No. 156, § 10, 7-14-76)

Sec. 14-29. Hours for use.

No person shall enter the area designated as the transfer station before the hour of its opening or after the hour of its closing or at any time on any day when such area is not open to the public. No person shall deposit, dump or leave refuse of any kind in any area within the transfer station or adjacent to the transfer station at any time that the transfer station is not open to the public.
(Ord. No. 156, § 3, 7-14-76)

Sec. 14-30. Criminal trespass.

In addition to the penalties provided in section 1-12, any person violating section 14-28 or 14-29 shall be guilty of criminal trespass in a secured area as defined by RSA 635:2 and shall be punishable therefor as is prescribed by that section.
(Ord. No. 156, § 4, 7-14-76)

Sec. 14-31. Unlawful use.

No person shall:

- (1) Deposit refuse in an area not designated as a dumping area.

- (2) Fail to abide by the lawful instructions of any attendant as to the dumping of metallic or wooden materials.
 - (3) Fail to pay such fees as may be assessed from time to time in accordance with the regulations issued by the city manager for the disposal of demolition materials, trees, tree trunks, stumps and such other nonresidential refuse as the city manager may from time to time specify, subject to the approval of the city council.
- (Ord. No. 156, §§ 5, 6, 7-14-76)

Sec. 14-32. Use by other municipalities.

The city manager, upon approval of the city council, may contract with other municipalities and upon payment of a negotiated annual fee may permit residents of those municipalities and/or refuse haulers for those municipalities certified by the public utilities commission who apply, to use the city's transfer station for the disposal of refuse in compliance with the terms of this article.

(Ord. No. 156, § 7, 7-14-76)

Sec. 14-33. Use of transfer station.

No person shall dump refuse of any kind in the transfer station without complying with the payment of any fees and complying with the rules and regulations in sections 14-28 and 14-31.

(Ord. No. 156, § 2, 7-14-76)

Sec. 14-34. Use restricted.

(a) For the purposes of this article, the word "resident" shall include all persons who own real property within the city but who are not living within the limits of the city, except that such persons may not utilize the transfer station for refuse brought from outside the city.

(b) Any person who shall pay applicable fees for use of the transfer station and permit shall certify to the issuing official that he is a resident of the city or that he is the holder of a public utilities commission certificate of authority.

(c) Any resident of a town which has contracted with the city for use of the transfer station and has paid the applicable fee.
(Ord. No. 156, § 7, 7-14-76)

Sec. 14-35. Fees.

The fees for the use of the transfer station shall be on file in the city manager's office.
(Ord. No. 156, § 9, 7-14-76; Ord. No. 273, § 4, 4-9-87)

Secs. 14-36–14-70. Reserved.

ARTICLE III. HAZARDOUS WASTE*

Sec. 14-71. Authority.

This article is enacted under the authority of RSA 47:17(IX) (dangerous materials) and (XV) (well-being of the city).
(Ord. No. 257, § 1, 1-8-86)

Sec. 14-72. Purposes.

To provide for the control, containment, and clean up of hazardous materials which are a threat to the health and safety of people, animals, wildlife, vegetation, property, and the environment; and to require the users of any hazardous materials to pay for all services provided by the city in relation to the control, containment or clean up of hazardous materials.
(Ord. No. 257, § 2, 1-8-86)

Sec. 14-73. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Hazardous materials shall mean those substances or materials in such quantity and from which may pose an unreasonable risk to health and safety or property, which may include but are not limited to, explosives, radioactive materials, etiologic agents, flam-

*Cross reference—Fire prevention and protection, Ch. 6.

mable liquids or solids, combustible liquids or solids, poisons, oxidizing or corrosive materials, and compressed gases which are listed by the materials transportation bureau of the United States Department of Transportation in Title 49 of the Code of Federal Regulations and any amendment thereto.

User shall mean any person who owns, uses, handles, stores, or has the legal authority to control hazardous materials, specifically including their officers, directors, employees and agents.
(Ord. No. 257, § 4, 1-8-86)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 14-74. Application.

This article applies to all users of hazardous materials except:

- (1) Hazardous waste as defined and regulated by RSA 147-A.
 - (2) The transporting of hazardous materials to the extent such activities are regulated by RSA 265:115-265:118.
 - (3) Oil spillage in public waters to the extent such activities are regulated by RSA 146-A.
- (Ord. No. 257, § 3, 1-8-86)

Sec. 14-75. Enforcement.

The chief of the fire department shall be responsible for enforcing this article.
(Ord. No. 257, § 10, 1-8-86)

Sec. 14-76. Duty to report.

Any person who causes or has knowledge of any discharge or release of hazardous materials from their safe container, in any manner which poses an actual or potential threat to people, animals, wildlife, vegetation, property or the environment, shall immediately report the incident to the fire department.
(Ord. No. 257, § 5, 1-8-86)

Sec. 14-77. Control, containment and clean up.

The fire department shall promptly respond to each reported incident and take such action as is necessary to protect public health, safety, property and the environment.

(Ord. No. 257, § 6, 1-8-86)

Sec. 14-78. Costs.

The user of the hazardous material, which was discharged or released, shall be strictly liable to the city for all costs incurred in the control, containment, and clean up of the hazardous materials. For this purpose, all of the users shall be jointly and severally liable and the costs may be recovered from any of them by a suit in any court with jurisdiction over the parties and the amount claimed.

(Ord. No. 257, § 7, 1-8-86)

Sec. 14-79. Penalties.

(a) Any person who fails to report, as required by section 14-76, shall be assessed a civil forfeiture not to exceed five hundred dollars (\$500.00).

(b) Any person who intentionally discharges or releases, or causes another to discharge or release, any hazardous materials from their safe container, in any manner which poses an actual or potential threat to people, animals, wildlife, vegetation, property, or the environment, shall be assessed a civil forfeiture not to exceed one thousand dollars (\$1,000.00).

(Ord. No. 257, § 8, 1-8-86)

Sec. 14-80. Use of costs and civil forfeiture collected.

All costs and civil forfeitures collected under this article shall be placed in a special hazardous materials account and expended by the chief of the fire department to equip, maintain, and train a hazardous materials response unit.

(Ord. No. 257, § 9, 1-8-86)